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I. Introduction to Torts

Tort law represents one of the fundamental pillars of our legal system, addressing civil wrongs and harms committed by one party against another. The word "tort" derives from Latin "tortum," meaning twisted or wrong, and appropriately describes actions that violate societal norms for how we should treat one another. Unlike criminal law, which focuses on offenses against society as a whole, tort law provides a mechanism for injured individuals to seek compensation directly from those who have harmed them.

At its core, tort law balances competing interests: freedom to act versus protection from harm. The legal system recognizes three primary categories of torts: intentional torts, negligence, and strict liability. Intentional torts include battery, assault, false imprisonment, and trespass, where defendants deliberately acted in ways that violated others' rights. Negligence—the most common basis for tort claims—involves failures to exercise reasonable care, resulting in foreseeable injuries. Strict liability represents the most stringent form of responsibility, holding defendants accountable regardless of fault in specific high-risk situations like keeping wild animals or engaging in ultrahazardous activities.

What makes tort law particularly fascinating is how it evolves to reflect societal values and changing technologies while maintaining foundational principles. A legal doctrine that once addressed horse-drawn carriage accidents now applies to autonomous vehicles; rules governing physical trespass now extend to digital intrusions. Through this adaptability, tort law continues to fulfill its essential purpose: providing remedies for those wrongfully harmed while establishing standards of conduct that promote safety, accountability, and respect for individual rights in our complex society.



Figure 1"IMG_8403" by zaphad1 is licensed under CC BY 2.0

II. Intentional Torts

Don't Bring a Gun to a Knife Fight

Learning Objectives

After completing the reading in this section on Intentional Torts, the student will be able to:

1. Identify the elements of the torts of assault, battery and false imprisonment.
2. Identify the elements of the various types of invasion of privacy.
3. Identify the elements and defenses to defamation.
4. Be able to identify and distinguish between various intentional torts using a fact pattern.
5. Be able to identify and apply defenses to various intentional torts using a fact pattern.

A. Assault

1. Intent

To meet the requisite intent for assault, the defendant must intend to create the apprehension in the plaintiff that is the essence of the tort. Otherwise, the plaintiff can use the transferred-intent doctrine – transferring intent from person-to-person and from tort-to-tort.

Assault means: (1) the defendant undertook an act, (2) with intent, effecting (3) the immediate apprehension of a harmful or offensive touching of the plaintiff.

In the assault context, person-to-person transference of intent takes place when the defendant intends to create an immediate apprehension in X, but in fact causes an immediate apprehension in Y. In such a case, Y can show the requisite intent for the prima facie case.

Tort-to-tort transference of intent takes place between battery and assault. Suppose the defendant intends to strike the plaintiff in the back – thus intending to commit a battery but not an assault. This intent suffices for the intent element of an assault claim. So if, for instance, the plaintiff turns

around just before the defendant strikes, and thus is able to move out of the way, the plaintiff has a good cause of action for assault.

As explained previously, transferred intent can also work two ways at once. If the defendant intends to commit a battery by throwing a beer bottle at Jill, but throws wide left so that Kai has to duck out of the way, the defendant has exhibited the requisite intent for Kai's claim against the defendant for assault. Note that under the older, traditional view of transferred intent, transference is allowed among any of the torts of assault, battery, false imprisonment, trespass to land, and trespass to chattels.

2. Immediate Apprehension

Assault requires that the plaintiff experience an immediate apprehension of a battery. Apprehension is distinguished from fear. Fear is not required for an assault case. Suppose a small child – cranky and weak from having missed an afternoon nap – swats at a mixed-martial arts champion. No fear results. But there is an actionable assault. It might be a dumb move as far as public image goes, but the MMA champ can sue the child for assault and win. It is also important to keep in mind that the apprehension must be immediate. Threats of harm that might occur in the future – even in the quite near future – will not support an apprehension claim. Having the plaintiff anticipate a battery the next day or even in the next minute or two is not enough. The apprehension must be in the moment.

It does not matter, by the way, if the threatened battery could not come to fruition. Aiming an unloaded gun at a person – so long as the person believes the gun to be loaded – counts as an assault.

Traditionally, there must be some physical act or movement to effect an assault. It might be raising a stick for a swing, or even reaching into a pocket. Sometimes courts say that “words alone cannot constitute an assault.” Many courts, however, when pressed, would probably agree that surrounding circumstances could make for a situation in which an assault would lie for words alone. A plaintiff already held at gunpoint by a third party, for instance, would likely have a good claim for assault against the interloping defendant who yells “Fire!” Authorities acknowledge that words can have the effect of alleviating the potential for an apprehension. Suppose the defendant says, “I don’t have any bullets, which is a shame,” at which point the defendant pulls out a pistol and says, “because if I did, I would shoot you right now.” There is no assault in such a situation.

B. Battery

Battery may be the most basic tort of all. Battery is intentionally touching someone in a harmful or offensive way. Along with the torts of trespass to land and trespass to chattels, battery traces its history in English law as far back as tort law goes, to an action called the writ of trespass vi et armis (“by force and arms”). As part of a set with trespass to land and trespass to chattels, the tort of battery could just as well be called trespass to the body. That’s the essence of the complaint – a physical intrusion by one person on another’s flesh – whether accomplished by stabbing, spitting, grabbing, kicking, caressing, shoving, shooting, or any of a million other unwelcome ways.

Battery means: (1) the defendant undertook an act, (2) with intent, effecting a (3) harmful or offensive (4) touching of the plaintiff.

1. The Act

First, there must be an act of the defendant. This is a simple requirement that is almost always very easy to meet. All it requires is that the defendant engage in some volitional action. This requirement will not exclude many cases, but it will exclude a battery claim where the touching of the plaintiff is caused by some motor reflex or unconscious movement on the part of the defendant. So a sleepwalker could escape liability by pointing to the lack of an act, as could a jumpy person whose limbs flailed in reaction to a noise. The act requirement also excludes cases where the plaintiff’s complaint is that the defendant failed to act to prevent a touching. Standing by and watching someone get hit by an object, even when a slight exertion would have deflected it, does not meet the act requirement. But note that persuading someone with words to stand in a certain spot where she or he will suffer a harmful or offensive touching would count as an act for the purpose of battery.

2. Intent

Next is intent. As is the case with intentional torts generally (and as discussed in Chapter 16), acting either with purpose or with substantial certainty suffices as intent. Closing your eyes and swinging your arms widely in a tightly packed room – even if solely for the purpose of expressing an overwhelming joie de vivre – can suffice as intent for battery, because it’s substantially certain that you will hit someone. Keep in mind, of course, that intent is a jury issue, so its determination depends ultimately on what the jury believes.

We still are left with this question: What is it that the defendant must intend? Unless transferred intent applies, the required object of intent is a battery. That is, the defendant must intend to inflict a harmful or offensive touching. This means that merely intending to move one’s limbs is not enough to meet the intent requirement. Suppose you intend to pitch a baseball dangerously near an unaware bystander. That does not count as intent for battery. Now, it might be correctly characterized as negligence, and if the bystander is harmed, the thrower might be liable via a negligence claim. But the intent for battery would not be satisfied.

Remember, too, that the doctrine of transferred intent expands the scope of intent so that a defendant who intends to commit a battery on Arthur, but who misses and commits a battery instead on Beatrice, has acted with requisite intent for a claim by Beatrice. And in addition to transferring intent among persons, the transferred-intent doctrine permits transfers of intent between assault and battery. And courts adhering to the most traditional view allow transfer among any of the torts of battery, assault, false imprisonment, trespass to land, and trespass to chattels. So, if a defendant intends not to punch the plaintiff, but only to create the immediate apprehension of a punch, and if the defendant misjudges the angles and actually punches the plaintiff, then there is sufficient intent to suffice for a battery claim. Intent can even transfer simultaneously from person to person and tort to tort. Throwing a hatchet with the aim of making a near-miss of Anne, but missing and grazing Burl, will suffice for intent to commit a battery against Burl.

3. Harmfulness or Offensiveness

People get touched by others all the time. One person may tap another on the shoulder to ask for the time. Persons in a crowd will unavoidably bump into one another. What keeps these touches from being actionable as batteries is the requirement of harmfulness or offensiveness. If it weren't for the harmful-or-offensive element, millions of battery claims would arise every second. A touching that causes actual harm is harmful – and there is no need to take the analysis any further. But a touching need not inflict harm to be considered harmful or offensive. Nor is there a requirement that the plaintiff be “offended” in the sense of being affronted. A touching is “offensive” in the battery sense if it intrudes upon a person's reasonable sense of dignity.

To put it more plainly, people have the right to not be “messed with,” and the harmful-or-offensive element tracks this. Any touching of a person in a way that is not socially sanctioned under the circumstances and that a person would reasonably find objectionable is a battery. Societal convention plays a large role here. Tapping a stranger on the shoulder to ask the time is not battery because it's generally understood that this is how members of society interact with one another even when they are strangers. But tapping someone repeatedly on the shoulder to ask the time repeatedly would be battery because, to sum it up in vernacular, “That's weird.”

What counts as harmful or offensive may even differ geographically. In Boston, strangers brush into each other on sidewalks all the time. In Los Angeles – provided they are out of their cars and walking around – pedestrians don't touch. In Manhattan during the lunch hour, people unhesitatingly pack into elevators in such a way that there is substantial touching. But in the rural Midwest, people will wait for the next elevator rather than get cozy. Yet geographical differences only go so far. Even in Manhattan, if the elevator is otherwise empty and you sidle up and stand so that you are touching the next person, you have transcended social convention and likely committed a battery. Regardless of whether some touchings – like the tap on the shoulder – are socially acceptable as a general matter, once a person has put another on warning, social convention yields to the individual's right to be let alone. Even a friendly hug of a close friend can constitute a battery after the friend bellows, “Don't touch me right now!”

4. The Touching

The prototypical case of battery would involve a defendant who punches the plaintiff in the face. That certainly is a touching. But you should think about “touching” broadly. The touching can, for instance, be indirect. Sneakily removing someone’s chair as they go to sit down, thereby causing them to fall to the floor, will count as a “touching.” So can putting some foul substance in a person’s drink. Laying a trap for someone that doesn’t spring until years later would be a touching as well.

C. False Imprisonment



“They shut me up in Prose as when a little Girl They put me in the Closet - Because they liked me ‘still’” – Emily Dickinson

False Imprisonment means that the defendant (1) intentionally (2) confined the plaintiff, and that the plaintiff (3) was aware of the confinement.

The tort of false imprisonment gives plaintiffs a claim to assert when they are held against their will. It is tempting to think of false imprisonment as an ancient relic, a tort with only very rare applicability. The examples that come most easily to mind might be pirates and highwaymen, working in remote places far from the arm of the law. Yet the tort of false

imprisonment is relevant all over the landscape of modern life – as close by as department stores and parking garages.

At the outset it is helpful to note that you should not try to make sense of this tort by its name. “False imprisonment” is a double misnomer. First, there is no requirement that the plaintiff be put in prison. All that is necessary is confinement, which might be accomplished without any walls or physical restraints of any kind. For instance, compelling a plaintiff at knifepoint to not move is sufficient confinement for false imprisonment. Second, in so far as people understand the word “false” to mean “not true,” then that is a misnomer as well, because a prima facie case requires true confinement. In the false imprisonment context, think of “false” as meaning wrongful or illegitimate.

1. Intent

The intent required for false imprisonment is the intent to confine. The defendant need not have bad intentions, nor must the defendant intend that the confinement be illegal, tortious, or even

improper. Working with the best of intentions and a conviction of being on the right side of the law is perfectly compatible with the requisite intent to confine.

As with the other intentional torts, false imprisonment observes party-to-party transferred intent. If Amy intends to confine Bella, but winds up confining Constance, then Amy has the requisite intent for Constance's prima facie case against Amy for false imprisonment. Remember, too, that some courts allow tort-to-tort transferred intent among any of assault, battery, false imprisonment, trespass to land, and trespass to chattels.

2. Meaning of Confinement

To be confined for the purpose of false imprisonment, the plaintiff must be restricted to some closed, bounded area for some appreciable amount of time. Confining a person to a room certainly counts but so does confining a person to a particular city or state. The area need not be strictly delineated. A subway mugger who orders a plaintiff not to run away on threat of being shot effects an actionable confinement regardless of whether the mugging takes place in an enclosed subway car, on a platform, or in the ticketing area. The plaintiff in such circumstances is confined to the space in which she or he is standing, and thus the confinement is actionable.

Even though the area of confinement can be large or small, it must be complete. Freedom of movement must be bounded in all directions. A mere roadblock will not count. Suppose a plaintiff, out for a walk in the city, meets a gang of thugs who, through threats, prevent the plaintiff from walking on the public sidewalk on Elm Street between 10th Street and 11th Street. If the plaintiff can freely back up and walk somewhere else, then there is no false imprisonment. Along these lines, a plaintiff cannot use false imprisonment to sue for being wrongly kept out of some particular place. That is to say, the confinement of false imprisonment does not work in reverse. If a plaintiff is not allowed into a certain restaurant or club, there is no false imprisonment. It will not do to say that the area of confinement is "the rest of the world."

In cases where the confinement is achieved by means of physical barriers, courts often say that there must be no reasonable means of escape. Suppose the defendant locks the door to the room the plaintiff is in. We must ask if there some other reasonable way out. If the sliding-glass door to the patio is open, and if the patio opens onto a golf course, then that's a reasonable means of escape, and no false imprisonment claim will lie. But if the only means of escape is to jump from a second-story balcony or to crawl through HVAC ducts, then the means of escape is not reasonable, and the plaintiff has a good claim for false imprisonment.

There is no minimum amount of time for a valid confinement. Typically, courts will say that the confinement need only be for an "appreciable time." A confinement of one minute, for example, would be much more than enough. The duration of the confinement may become a live issue in the context of an affirmative defense of consent. For instance, amusement park patrons have consented to a confinement when they board a dark ride and pull down the lap bar. But a confinement for how long? If the ride stops, must the park release the lap bars immediately and let everyone go? Or can they take some time to restart the ride before they must release patrons? That

question turns on the scope of the consent, and it could be a close issue that requires a jury to resolve.

In a false imprisonment case, the confinement can be accomplished by several means. The most straightforward is by physical barriers, such as with walls or fences. But false imprisonment can also be accomplished by force or imminent threat of force. Threatening a plaintiff at gunpoint is an obvious example; however, the threat need not be against the plaintiff. The threat could be directed at a third person. Some authorities say the third person must be a family member or someone who is immediately present, but one imagines, if pressed, courts would permit a false imprisonment cause of action for threats to strangers, so long as they were serious and credible.

One aspect of the doctrine that is crystal clear is that the threat must be imminent. Telling a person to stay put – or else suffer injury the next day – would not be considered confinement within the meaning of the tort. The fact that the false imprisonment tort does not allow recovery in such a situation seems to imply that, in the view of the law, a would-be plaintiff should go and seek police involvement before the threat matures. The barriers, force, or threat need not be directed at persons, but can also be aimed at the plaintiff's property. A plaintiff who is "free" to walk away only by surrendering chattels is not free at all under the eyes of false-imprisonment law.

Suppose a drunk and belligerent party host refuses to return the plaintiff's coat when the plaintiff is ready to leave the party. That deprivation of property will count as confinement for false imprisonment.

Another recognized method of confinement is improper assertion of legal authority. Flashing a fake police badge and informing a plaintiff that she or he is under arrest is an obvious example. But improper assertion of legal authority could be made by a real peace officer with a real badge. In the real world, suits against individual police officers for false imprisonment are rare. But the reason has nothing to do with the doctrine of false imprisonment itself. Individuals are frequently judgment proof, plaintiffs are often not credible witnesses, and state statutes may shield law enforcement officers from suit. But as far as common-law tort doctrine goes, a police officer making an invalid arrest is liable for false imprisonment.

A common context for false imprisonment accomplished by improper legal assertions is with security officers in retail stores, who may falsely tell suspected shoplifters that they are under a legal obligation to stay on the premises and answer questions, or that they must wait for the police to arrive. Often, store security has no legal basis upon which to make such a claim (although in any given jurisdiction, store security officers might have an authentic legal right to detain people through a statute or a common law "shopkeeper's privilege"). The confinement does not need to be accomplished by an overt act. An omission might do the trick under certain circumstances. If the defendant is under an existing obligation to act, then the omission to release the plaintiff can be false imprisonment.

For example, lawfully confined inmates must be released when their sentences are up, and a jailer who omits to unlock the cell when required to do so becomes liable for false imprisonment.

Similarly, an amusement park patron pulling down a locking lap-bar on a roller coaster has consented to a confinement. But if the ride operator refuses to release the lap-bar when the ride is over, there is liability for false imprisonment.

3. Awareness

In addition to intent and confinement, the balance of authority adds the requirement that the plaintiff must be aware of the confinement. Because of the awareness requirement, an unconscious person locked in a room cannot, upon waking up to an open door, make out a case for false imprisonment. Many have noted that the awareness requirement in the false imprisonment tort is consonant with tort's emphasis on an individual's sense of autonomy.

According to convention, however, there is an exception to the awareness requirement. Authorities commonly state, without elaboration, that if the prisoner is harmed by the confinement, then awareness is not required. This exception creates something of a 180 puzzle: It's not so easy to imagine a situation in which a plaintiff is harmed by a confinement of which she or he is unaware and where the confinement itself is the essence of the harm, as opposed to a battery. Suffice it to say, it must not come up very often. False Imprisonment: Scope of Privilege or Consent Privilege or consent is an affirmative defense to false imprisonment. And in many cases, the scope of that privilege or consent is likely to be crucial. Consider some examples: Jailers who confine their inmates have a legal privilege to do so. And riders on common carrier transport have consented to a confinement.

D. Intentional Infliction of Emotional Distress

"If only these treasures were not so fragile as they are precious and beautiful." – Johann Wolfgang von Goethe, *The Sorrows of Young Werther*

The tort of intentional infliction of emotional distress is the most recent of the intentional torts. First arriving on the scene in the late 1800s, the tort won general acceptance the last half of the 1900s. It often goes by the abbreviation "IIED" and many other names as well, the most concise of which is "outrage." Other, longer names are "intentional infliction of emotional harm," "intentional infliction of mental distress," and "intentional infliction of mental shock."

Happily, in our society, people are largely civil to one another. But even when they are not, their insulting behavior rarely rises to the level required for liability under IIED. As we will see, IIED claims require unusual



Figure 2 "Happy Halloween" by timo_w2s is licensed under CC BY-SA 2.0

Intentional Infliction of Emotional Distress means that the defendant (1) intentionally or recklessly, (2) by extreme and outrageous conduct, (3) inflicted severe emotional distress on the plaintiff.

facts and extreme behavior. One place where IIED does seem to pop up with some frequency is in the employment context. Sadly, there seems to be all too many people wanting to inflict misery on their co-workers. But IIED comes up in other contexts as well – not the least of which are high school hallways and social media sites.

1. Intent

Like many other torts terms, intentional infliction of emotional distress is a misnomer. The intent element of the prima facie case is satisfied when the defendant either intended the plaintiff's severe emotional distress or acted in deliberate disregard of a high probability of causing the plaintiff to suffer severe emotional distress (i.e., recklessness). Thus, despite its traditional classification as an intentional personal tort, and despite the "intentional" in its name, IIED does not require that the defendant act intentionally. Recklessness will suffice.

When it comes to transferred intent, IIED is a lone wolf: Intent generally does not transfer to the outrage tort. Thus the intent to cause a battery, by itself, is insufficient intent for IIED. And the intent to cause person X to suffer severe emotional distress will not suffice as intent for a suit brought by Y for emotional distress.

The non-applicability of transferred intent for IIED notwithstanding, it should be noted that some courts have held that a plaintiff can successfully sue a defendant for IIED where the defendant inflicts intentional bodily harm on the plaintiff's immediate family member in the plaintiff's presence – even if the defendant did not intend any emotional distress by doing so. This sort of fact scenario is probably best thought of not as transferred intent, however, but as an instance of recklessness fulfilling the intent requirement. That is, in such a situation, the defendant is construed to have acted in deliberate disregard of the likelihood that the plaintiff would be made to suffer severe emotional distress.

2. Extremeness and Outrageousness

While the intent element may be comparatively easy to meet in an IIED claim, the requirement of extreme and outrageous conduct is a high bar. Being rude or insulting – even startlingly rude and grossly insulting – is not nearly enough to qualify as extreme and outrageous conduct.

A typical statement is that the conduct "must transcend all bounds of decency and be regarded as atrocious and utterly intolerable in a civilized community." *Graham v. Guilderland Central School District*, 256 A.D.2d 863, 863–64 (N.Y. App. Div. 1998). One vivid example of outrageousness comes from *Nickerson v. Hodges*, 84 So. 37 (La. 1920). The plaintiff, Miss Nickerson, earnestly believed that a pot of gold was buried on her property. Her belief was based on family rumor and bolstered by a fortune teller. The neighbors – aware that Nickerson had a history of mental illness – filled a pot with rocks and dirt, put a lid on it, and buried it where she could find it. Included with the pot were instructions to encourage Nickerson to open the pot for the first time in front of a gathering of people. She did. The court reports that "the results were quite serious indeed, and the mental suffering and humiliation must have been quite unbearable, to say nothing of the disappointment and conviction, which she carried to her grave some two years later, that she had been robbed."

Despite the death of the plaintiff before trial, her estate succeeded in winning a claim for intentional infliction of emotional distress.

Other examples of IIED include killing a pet animal in the pet owner's presence (*LaPorte v. Associated Independents, Inc.* 163 So.2d 267 (Fla. 1964)) and burning a cross in the yard of an African-American person (*Johnson v. Smith*, 878 F. Supp. 1150 (N.D. Ill. 1995)).

Notwithstanding these examples, IIED claims do not necessarily have to involve grim spectacle. They can involve quiet, isolated suffering as well.

In *Kroger Co. v. Willgruber*, 920 S.W.2d 61 (Ky. 1996), the court recognized an outrage claim where the complaint alleged that an employee, fired for a refusal to violate ethical rules, was then sent to chase an nonexistent job in another state.

While mere insults and incivility are generally not outrageous enough for IIED, there are two situations in which invective alone can be enough to sustain a claim. First is where there is a continued pattern of insults or demeaning behavior. Given enough time, simple boorishness can eventually accumulate to tortious proportions. Most people won't stand around and be continuously insulted if they can help it, so actionable patterns of repeated verbal abuse often happen in a context where the plaintiff is economically compelled to stay and endure the mistreatment.

Workplaces and schools are frequent examples. Second, courts have traditionally allowed even single instances of gross insult to be actionable where the defendant is an innkeeper or common carrier. Allowance of such claims harkens to an ancient ethic that demands travelers – far from home and dependent on the assistance of strangers – are to be treated especially well. To generalize about the extreme-and-outrageous requirement, one can often see a theme of inequality between the plaintiff and defendant.

Along these lines, Professor Dan B. Dobbs identifies four markers that tend to support a finding of outrageousness: (1) abusing one's position over or power with respect to the plaintiff, (2) taking advantage of a plaintiff whom the defendant knows to be particularly vulnerable, (3) repeating offensive conduct in a situation where the plaintiff is not, as a practical matter, free to leave, and (4) perpetrating or threatening violence against a person or property in which the plaintiff is known to have a particular interest. See DAN B. DOBBS, *THE LAW OF TORTS*, p. 827 (2000).

Note that because the threshold for what counts as outrageous depends on societal mores. What is outrageous in one era may not be in the next. So, as our culture changes, IIED will change right along with it.

3. Severe Emotional Distress

Another high threshold for outrage claims is the requirement that the plaintiff must have suffered severe emotional distress. Suffice it to say that merely being upset or even reduced to tears is not enough. The word "severe" is key.

In an earlier era of IIED, plaintiffs had to prove some physical symptom of the distress – heart problems, stomach ulcers, teeth worn from grinding, or some other corporeal manifestation of torment. In fact, some jurisdictions still require a physical symptom. But the majority of courts today leave it up to the jury to determine whether or not the distress is truly severe. Medical testimony is optional. Of course, where physical ailments can be proved, the plaintiff’s case benefits. The extremeness and outrageousness of the conduct tends to go hand-in-hand with the severity of the emotional distress. A strong showing of outrageousness aids the showing of severity. It’s helpful to take a moment to contrast IIED’s requirement of severe emotional distress with assault’s requirement of an apprehension of harmful or offensive contact. A particularly stalwart plaintiff, unfazed by an apparently impending finger poke, can bring an assault claim – unflappability notwithstanding. But an emotionally tough plaintiff, one who lets the defendant’s taunts and slings roll off her or his back, is barred from claiming IIED. No severe distress, no claim.



Figure 3 "This Phone is tapped sticker, KBOO, Portland, Oregon, USA" by gruntzooki is licensed under CC BY-SA 2.0

E. Invasion of Privacy

"I never said, 'I want to be alone.' I only said, 'I want to be let alone!' There is all the difference." – Greta Garbo, c. 1955

The value people place on their privacy is famously reflected in the Constitution. But it is also reflected in tort law. Back in 1890, in one of the most cited law review articles of all time, future U.S. Supreme Court Justice Louis D. Brandeis and his friend Samuel D. Warren argued that there existed a common-law right of privacy: Samuel D. Warren & Louis D. Brandeis, *The Right of Privacy*, 4 HARV. L. REV. 193 (1890).

Courts followed that lead in construing tort law to protect the right of privacy. Then, around the middle of the 20th Century, a few writers began to break up the right of privacy into separate torts. Chief among them was William L. Prosser, who identified four separate torts within "right of privacy." See William L. Prosser, *Privacy*, 48 CAL. L. REV. 383 (1960).

In this section, we will discuss three of the four privacy torts that Prosser identified:

- (1) false light,
- (2) intrusion upon seclusion, and
- (3) public disclosure of embarrassing facts.

The fourth tort that Prosser identified, appropriation of name or likeness (or "the right of publicity"), concerns the right of people – often celebrities – to exclusively control the use of their name and image on merchandise, in advertising, and in other means of commercial exploitation. The right-of-publicity cause of action has evolved to go beyond notions of privacy and has been increasingly

discussed in terms of analogies drawn to intellectual property. It is not covered in this chapter. The three torts of false light, intrusion, and public disclosure all protect various aspects of what you might informally call a person's right "not to be messed with" or "to be let alone."

1. False Light

The tort of false light is very similar to defamation, except that it is harnessed to ideas of privacy and dignity rather than reputation. It allows a cause of action where a defendant spreads a highly offensive, false statement to the public. The tort of intrusion upon seclusion provides a cause of action against the most stereotypical invasions of privacy, such as when someone spies or peeps on someone. The tort of public disclosure allows suit against defendants who spread to the public embarrassing facts about the plaintiff that, while true, are none of anyone's business. Taken together, defamation and the privacy torts seek to protect a person's non-corporeal integrity – that part of ourselves that is reflected in what people thinks about us. Like defamation, the privacy torts routinely implicate First Amendment values, and they are often brought against media defendants. Because of this, a rich constitutional jurisprudence has developed to constantly patrol the perimeters of these torts.

False Light means that the defendant makes (1) a public statement (2) with actual malice (3) placing the plaintiff in a (4) false light (5) that is highly offensive to a reasonable person.

As you can see, false light is very similar to defamation. Both concern falsehoods told about the plaintiff. In fact, some jurisdictions have rejected the false light cause of action as being needlessly duplicative of defamation. Yet there are some key differences between the doctrines. And because of those differences, there are some situations in which there will be liability for defamation but not for false light, and vice versa.

The most important difference is that false light does not require reputational harm. For false light, a plaintiff can sue over a false statement even if it is reputation-enhancing rather than being reputation-harming. Saying that someone is a war hero, for instance, when the person actually never served in the military, would be an example of a falsehood that is not reputation-harming but nonetheless could be considered highly offensive.

Notice also that false light requires that the statement be made to the public – a much higher threshold than defamation's requirement of only one other person receiving the communication. First Amendment values are just as much implicated by the tort of false light as they are with defamation, and because of this, all the First Amendment limits to defamation apply to false light. But note that the common-law structure of the false light tort, as it is typically set forth by the courts, has built-in First Amendment compliance: Falsity and actual malice must be proved as part of the prima facie case.

2. Intrusion Upon Seclusion and Public Disclosure

Intrusion upon seclusion and public disclosure are quite different from false light. To sum them up as concisely as possible, you can think of intrusion upon seclusion as the tort of peeping or creeping, and public disclosure as the tort of blabbing.

Public Disclosure of Private Facts

means that the defendant effects (1) a public disclosure of (2) private facts, (3) which such disclosure is highly offensive to a reasonable person.

The public disclosure tort is limited by a newsworthiness privilege, and it necessarily engages First Amendment concerns which courts will apply along the lines of the teachings of *New York Times v. Sullivan* and its progeny.

Of the four privacy torts identified by Prosser, the tort of intrusion into private places, intrusion upon seclusion is perhaps the one that best captures the common understanding of an “invasion of privacy.” It encompasses unconsented-to physical intrusion into the home, hospital room or other place the privacy of which is legally recognized, as well as unwarranted sensory intrusions such as eavesdropping, wiretapping, and visual or photographic spying. It is in the intrusion cases that invasion of privacy is most clearly seen as an affront to individual dignity.

Intrusion Upon Seclusion

means that the defendant effects (1) an intrusion, physical or otherwise (2) into a zone where the plaintiff has a reasonable expectation of privacy, which is (3) highly offensive to a reasonable person.

“[A] measure of personal isolation and personal control over the conditions of its abandonment is of the very essence of personal freedom and dignity, is part of what our culture means by these concepts. A man whose home may be entered at the will of another, whose conversations may be overheard at the will of another, whose marital and familial intimacies may be overseen at the will of another, is less of a man, has less human dignity, on that account. He who may intrude upon another at will is the master of the other and, in fact, intrusion is a primary weapon of the tyrant.” (Bloustein, *Privacy as an Aspect of Human Dignity: An Answer to Dean Prosser* (1964) 39 N.Y.U. L. Rev. 962, 973-974, fn. omitted.)

Additional Sources and Case Law

[The Oxford Introductions to U.S. Law, chapter 11.](#)



Figure 4 "Did you see that article about Mittens?" "[Le Chien et le Chat](#)" by [Geoff Livingston](#) is licensed under [CC BY-ND 2.0](#)

Defamation is all about reputation and falsehoods. As a cause of action, it applies when a defendant makes false statements that are harmful to a plaintiff's reputation.

At first blush, defamation may seem to be something of an island, unconnected to the rest of the doctrinal landscape of torts. But at an instinctual level, it has something in common with the intentional torts of battery, assault, false imprisonment and intentional infliction of emotional distress. All these torts might be thought of as a suite of doctrines protecting a person's right to not be "messed with."

While the tort of battery protects a person's sense of bodily integrity, defamation and the various privacy torts (covered in the next chapter) protect a person's non-corporeal integrity. Defamation recognizes that we are more than our bodies. Our existence is also defined by our relationships with others. Thus, our protectable personal interests run to the web of interconnected impressions about us held in the imagination of others.

Although simple in concept, American defamation is complex as a matter of legal doctrine. There are two parts to the analysis. First is the common law, which itself is labyrinthine. Second is the First Amendment analysis imposed by the U.S. Supreme Court, which changes the requirements for defamation cases where important free speech values are at play.

A "statement can be either oral or written and can be something as simple as a few sentences or a whole book. Traditionally, written defamation was called libel and oral was called slander. With the advent of social media, these lines have been somewhat blurred and the current standard is whether the communication was in a permanent form or a temporary form. Thus, a blog would probably be considered libel whereas posting on someone's Facebook and then taking it down three days later would most likely be considered slander.

F. Defamation

"Words are, in my not-so-humble opinion, our most inexhaustible source of magic. Capable of both inflicting injury, and remedying it."

– Albus Dumbledore,
Harry Potter and the Deathly Hallows,
by J.K. Rowling, 2007

Defamation means that the defendant (1) made a statement, (2) that is published, (3) the statement causes harm to the reputation of the plaintiff, and (4) the statement is provably false.

To be published, the statement must be communicated to a single third party (someone other than the person making the statement). Please note that this definition of published is not the traditional one of being printed in a newspaper or other form of media.

To show damages, the person harmed must show that there was some injury to their reputation. It is, of course, much easier to show damages if there was a concrete result from the defamation, such as the loss of a job. If the damage is purely social in nature, it will be hard for the injured person to recover. For instance, if the only injury to a person's reputation is that his neighbors shun him and refuse to invite him to neighborhood events, it will be difficult to collect damages and the injured party may be confined to requesting nominal damages.

Of course, the statement must be false. If true, the tort would be public disclosure of a private fact, not defamation. Keep in mind that mere opinions are not considered defamatory, as they are subjective to the speaker.

Finally, the statement cannot fall under a legal privilege. There are certain classes of persons that are generally protected from defamation due to the nature of their positions. One example is politicians who make statements "on the floor", such as a Senator speaking in a session of Congress. They have an absolute privilege. If they could be sued for every false statement, we would have a mountain of litigation. However, some of these protections are qualified, meaning that it is not unlimited. For instance, a politician who claims that his opponent is a secret supporter of a certain policy would probably be privileged, whereas a false statement that his opponent was HIV positive may still be actionable.

One additional element for defamation concerns public figures. If the person is a music star, for example, they must not only meet the basic elements of defamation but must show that the person who wronged them did so with malice and not just negligence. This, if the National Inquirer wrote a story that turned out to be false, based on what they thought was a reliable informant, then the paper will not be liable unless the injured party could show that the newspaper acted with malice, a fairly high standard. Actual malice was defined by the U.S. Supreme in *Hustler v. Falwell*, 485 U.S. 46 (1988). <https://caselaw.findlaw.com/us-supreme-court/485/46.html>.

Additional Sources and Case Law

[The Oxford Introductions to U.S. Law, chapter 11.](#)

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G. Defenses to Intentional Torts

There's only one basic principle of self-defense: You must apply the most effective weapon, as soon as possible, to the most vulnerable target." - Bruce Lee

The elements of the causes of action for the intentional torts are only half the story. The intentional torts would be incomprehensible without their accompanying defenses – consent, self-defense, defense of others, and necessity.

All of these are crucial to understanding the full landscape of intentional tort liability.



1. Consent

Consent is the most important defense to intentional torts. Without it, every shutting of elevator doors would be actionable false imprisonment, every kiss of newlyweds would be actionable battery, and every haunted house at Halloween would generate an avalanche of actionable assaults.

What is seemingly strange about consent is that, at least in the traditional common-law formulation, it is a defense. That means that it is the defendant's burden of proof to show consent. So, technically, a person who sends out party invitations could sue everyone who came to the party for trespass and make out a prima facie case against each one. In court, the burden would fall on the party guests to prove that they were on the plaintiff's land with the plaintiff's consent. This may seem absurd way to structure the doctrine. Yet asking the plaintiff to prove lack of consent as a prima facie element would mean asking the plaintiff to prove a negative. That is something most courts are unwilling to do – at least in this context.

Let's take a slightly more realistic example than the litigious party host. Suppose that a contractor demolishes the attached garage of someone's house. Because consent is a defense, it is not the homeowner's burden to prove that the contractor did not have permission. Instead, the contractor will need to offer proof that there was consent. In this case, it seems intuitively fair to ask that the contractor be able to produce a preponderance of evidence of consent – such as a document signed by the homeowner.

Notwithstanding the problems of proving a negative, the courts in many states hold that lack of consent is a prima facie element for the intentional torts other than trespass to land. The plaintiff may accomplish this as an initial matter by testifying that there was no consent. Then it is up to the defendant to impeach or rebut that testimony. Yet putting the burden on the plaintiff for lack of consent is not without effect. In a close case, where the fact-finder perceives the evidence to be a toss-up, the tie will go in favor of the party without the burden of proof. So, in a jurisdiction where a

battery claim requires proof of a lack of consent, a tie on the consent issue means that the defendant wins.

The fact that trespass to land is the one tort for which courts seem unwilling to shift the burden on the consent issue to the plaintiff shows once again the abiding importance with which the law treats private ownership of land. To delve further into the issue of consent, it is helpful to break it up into chunks. Courts have categorized consent as coming in two forms – express and implied.

Express consent is consent that is expressed by the plaintiff. This doesn't require anything formal. Express consent can be communicated orally, in writing, or even in gestures. Legally, any of these is just as good as the other. In terms of trespass to land, waving someone into a room is just as valid a consent as delivering a signed written document that gives someone permission to enter. You might wonder, if gestures or spoken words are legally valid to express consent, then why would anyone ever insist on a signed document indicating consent? The reason is that parties might later disagree about what happened. In that case, a signed writing will be very credible evidence at trial. We should acknowledge that what is credible to a jury may depend on the circumstances.

If a neighbor is sued for walking into a backyard, a jury will probably readily believe testimony that there was a "come on over" gesture. But a jury would be rightfully skeptical of a demolition firm claiming it was given consent through gestures to bulldoze a garage. What this all means is that the doctrine of express consent is perfectly at home in the real world. Neighbors can stay neighborly and informal. But demolition firms are well advised to get signed, written permission before they bite into the first bucket-load of sheetrock.

Implied consent is consent that, instead of being expressed, is implied. Circumstances, custom, context, and culture can all create implications of consent. The validity of implied consent to intentional torts is crucial to how our society works.

A restaurant patron takes a paper napkin out of a dispenser and uses it. This is a prima facie case of trespass to chattels. But it's not a winning case, because there is implied consent for restaurant patrons to take napkins. Of course, if a restaurant patron empties all the dispensers, making off with hundreds of napkins, then the scope of the implied consent has been exceeded, and the restaurant has a good trespass-to-chattels case. Implied consent works on an objective standard. The question is whether the objectively reasonable person, standing in the shoes of the defendant, would have reasonably believed that the plaintiff consented. Implied consent can arise out of the particular circumstances.

Climb into a boxing ring and hold up gloved hands, and you have impliedly consented to getting punched by the boxer waiting in the ring. Implied consent can also arise by community custom. When neighborhood kids walk up to a house and ring the doorbell to sell cookies for a fundraiser, consent to come on the land is implied by community custom. If homeowners want to avoid the implication of consent, then they can post no-soliciting signs. The objective standard for implied consent leaves us with an important corollary: Consent can be valid even if the plaintiff never

intended to consent. This is because the issue is not what the plaintiff was secretly thinking, but rather what the objectively reasonable defendant would comprehend.

In addition to being implied in fact – that is, by circumstances or custom – consent can also be **implied by law**. When unconscious patients arrive in the emergency room, they have not consented to medical treatment. (How could they, being unconscious?) Consent in such a situation is implied by law for public policy reasons.

In some jurisdictions, during hunting season, consent for hunters to enter private property is implied by law. To defeat the implication, the onus is on property owners to post no trespassing signs. The distinction between consent implied by law and consent implied in fact can get a little blurry. At least on a theoretical level, the difference between implied-in-fact and implied-by-law consent is that implied-in-fact consent is manifested, if not by the plaintiff, at least by people within the plaintiff's community. The court, through implied-in-fact consent doctrine, merely recognizes that existing implication. By contrast, implied-by-law consent doesn't exist "out there" in the real world. Instead, the court construes it – that is, acts as if it exists – because the court has decided that doing so is for the best. If consent is obtained by fraud, duress, or a mistake induced by the defendant, then the consent will not be valid.

2. Self-Defense, Defense of Others & Property

Tort law guarantees citizens a civil way of settling disputes and getting justice. As such, tort law expects that people will not resort to the use of force against one another, infringements on their rights notwithstanding. Yet the law does recognize that there are some circumstances under which people cannot be expected to wait to try to vindicate their rights in court.

Under these limited circumstances, people can commit prima facie intentional torts and then later escape liability, if sued, by asserting defenses of self-defense, defense of others, or defense of property. Self-defense entitles a person to use reasonable force, as apparently necessary, to prevent an imminent and unconsented-to touching that is harmful or offensive, or a confinement. In other words, you can defend yourself with reasonable force where there is an immediate threat of battery or false imprisonment.

The law puts stringent limits on self-defense. Notice that the threat must be imminent. In other words, self-defense privilege arises where the defendant has an immediate choice of self-defense or suffering the battery or false imprisonment. If there is time to call the police, or if the threat has not fully materialized, then imminence is lacking, and self-defense will not shield the defendant from tort liability.

Another key limitation is that only reasonable force is permissible. That is, the degree of force must not be more than the force that appears necessary to thwart the threat. Deadly force may only be used where the defendant is faced with an extremely serious threat – such as death, rape, sodomy, loss of limb, loss of sight, etc. – and where nothing short of deadly force will stop the imminent attack.

Jurisdictions differ on whether the defendant has a duty to retreat. Many jurisdictions will not allow self-defense to negate tort liability where the defendant could have safely retreated to avoid the threat. Some jurisdictions, by contrast, allow a defendant to stand her or his ground and use force. In general, jurisdictions apply the same rule in torts as they do for criminal cases.

Defense of others – that is, defense of a third party – works nearly identically to self-defense, with one important exception. The exception comes up where the defendant makes a reasonable mistake about whether there really is a threat to the third party. In most jurisdictions, if the defendant mistakenly believes that the third party is threatened, when that person is not actually threatened, then the defendant cannot use defense of others to avoid tort liability.

Let's take an example: Suppose three friends are filming a video on a public street, shooting a scene of a mugging. In the scene, a man pushes down and savagely "beats" an actress appearing to be elderly woman. Unaware that it's staged scene, a passer-by stops his car, jumps out, and grabs the actor playing the thug, and pushes him away from the woman. In most jurisdictions, the passer-by – no matter how reasonable his subjective belief that a battery was occurring – would be liable to the actor he pushed for battery.

Funny enough, this example is not a hypothetical. These are the exact facts of what happened when actor Andy Samberg – before being hired on Saturday Night Live – was filming a mugging scene with his friends on Olympic Boulevard in Los Angeles. The passer-by who stopped to intervene was none other than actor Kiefer Sutherland. Famous for his role as tough-guy-who-doesn't-play-by-the-rules counterterrorism agent Jack Bauer on 24, Sutherland leapt to the woman's defense. Luckily, Samberg and his friends were able to quickly explain to Sutherland that they were making a movie.

In most jurisdictions, Sutherland would be liable for battery. In a minority of jurisdictions, Sutherland's reasonable mistake would not have prevented his ability to use defense of others as a complete defense to a suit for battery. Of course, in all jurisdictions, struggling comedic actors are well advised to milk such a situation for publicity value rather than filing a lawsuit.

Defense of property allows the reasonable use of force to defend both land and chattels against trespass. Generally, property owners must make a verbal demand on the trespasser to stop. After that, however, property owners may use as much force as is necessary to prevent the trespass, short of deadly force. Whether deadly force may be used for the protection of property is a controversial issue. Most jurisdictions do not allow deadly force to be used against a trespasser merely on account of defending a property interest. (Although if there is additionally a threat to a person, then deadly force may be permissible as self-defense or defense of others.) If the property is a dwelling, and the trespasser is engaging in a breaking-and-entering felony, then many or most courts would allow deadly force if necessary – that is, if the intruder could not be evicted more safely. A court examined this issue with a spring gun that was set by the property owner to fire on anyone that opened a door inside the home in *Katko v. Brinney*, 183 N.W.2d 657 (IA 1971).

This case involved a lawsuit where the plaintiff (Katko) sought damages for serious injuries caused by a spring-loaded shotgun trap set by the defendants (the Brineys) in an abandoned farmhouse.

For ten years, the Brineys had experienced trespassing and vandalism in the farmhouse, and they set up a shotgun trap in a bedroom, rigged to fire at someone's legs when the door opened. No warning signs about the trap were posted. Katko and a companion broke into the house to commit theft, and Katko was seriously injured by the trap. The Supreme Court of Iowa held that property owners cannot use deadly force (like spring guns) simply to protect unoccupied property. The court emphasized that "the law has always placed a higher value upon human safety than upon mere rights in property" and that deadly force is only justified when there is a threat to personal safety, not just to defend property against trespassers or thieves.

III. Negligence

Learning Objectives

After completing the reading in this section on negligence, the student will be able to:

1. Identify and define the elements of negligence: duty, breach, causation, and harm.
2. Define the concept of breach in negligence law, including how courts evaluate foreseeability of injury.
3. Explain the difference between actual and proximate causation, with due consideration to the concepts of "but for" causation, foreseeability, and intervening events.
4. Compare and contrast the various types of tort damages available to plaintiffs, including compensatory (specific and general), emotional, and punitive damages.
5. Define affirmative defenses to negligence, comparative fault, assumption of risk, and the last clear chance doctrine.
6. Apply negligence concepts to factual scenarios and evaluate liability.

By way of contrast, **negligence** involves accidental conduct that causes injury to a person due to carelessness on the part of the defendant. To be liable, the defendant must have had a duty to the plaintiff that the defendant breached, causing the plaintiff's injury. We will examine these four elements in more detail in this section, along with potential affirmative defenses to claims of negligence, such as assumption of risk, contributory or comparative negligence, and the last clear chance doctrine.

A. Duty: When and To Whom is a Duty of Care Owed

"A danger foreseen is half-avoided." – Cheyenne Proverb

The first element that must be established by a plaintiff in proving a negligence case is that the defendant owed the plaintiff a duty of care. If the defendant did not owe the plaintiff a duty of care,

then even if the defendant was careless and caused injury to the plaintiff, there will be no recovery in negligence.

Suppose someone asks you for one of your kidneys, explaining that otherwise they will die. In terms of negligence doctrine, you do not owe this person a duty to hand over a kidney. And even if the person dies as a result of not getting one of your kidneys, there is no *prima facie* case against you for negligence. You can probably intuit that there is not a good cause of action here, but it is instructive to consider the explicit reason. Check off the elements: There is an injury. There is causation. Those are not lacking. What is lacking is the duty of care.

Now, suppose you are carelessly operating a rocket-powered tricycle and, thanks to your lack of care, you careen out of control, hitting and injuring a pedestrian who was walking on a sidewalk. You owed the pedestrian a duty of care, and you breached that duty. And that breach caused an injury. Thus, the pedestrian will be able to establish a *prima facie* case for negligence. All the elements are in place. In this chapter, the key question is when and to whom is a duty of care owed. In other words: Is there a duty?

The question of what is required by a duty of care – in other words, just how careful do you have to be – is a question for the next chapter, in which we will talk about breach of duty. Whether or not there is a duty of care is generally considered a question of law, meaning it is a matter for the judge to decide. Thus, the doctrine of duty of care can be used to prevent a jury from hearing a case that might otherwise result in a substantial award of damages.

One way to think about the elements of a negligence case is that they are the law's way of providing an analytical structure that will pare down the universe of possible negligence matters into a subset of cases where awarding compensation is in tune with our basic intuitions of fairness. But when you try to construct simply stated rules that will both correspond with a sense of justice and work in any context, you run into the inevitable need for wiggle room. In tort law, the elements of duty of care and proximate causation do the most to provide that wiggle room, with duty of care being primarily the domain of judge, and proximate causation being generally the province of the jury. The duty of care can be defined as an obligation for people to exercise reasonable care to avoid foreseeable harm to others. It is a frustratingly fuzzy definition. So, if you feel like you are having a hard time understanding the concept of duty, do not worry. It probably just means that you are reading closely and thinking deeply. The duty-of-care standard is vague out of necessity. The definition of the duty of care is probably less important than the way it is employed by courts. Justice Mosk describes the role of the duty of care with considerable candor when he says, "It is the court's 'expression of the sum total of those considerations of policy which lead the law to say that the particular plaintiff is entitled to protection.'"

B. Breach

“What's called for here is not paranoia but its uptown cousin, reasonable caution.” – Brendan I. Koerner, *Wired Magazine*, 2010

“I did my best, but I guess my best wasn’t good enough.” – James Ingram, in a song written by Cynthia Weil, 1981

The next element in the negligence case is breach of the duty of care. Very roughly, this gets at the question of whether the defendant was “being careless.” In this sense, the breach element is really at the heart of negligence cause of action.



Remember that each element in the negligence cause of action is essential to presenting a prima facie case. If a plaintiff can prove that a defendant owed the plaintiff a duty of care and undertook an action that actually and proximately caused an injury to the plaintiff’s person or property, there can still be no recovery if there is no breach.

Suppose a woman slips and falls on a banana peel in the produce aisle of the grocery store, causing her to suffer a broken wrist. Suppose also that the banana peel had only been there for a couple of minutes before the woman slipped. On these facts, can the woman establish a prima facie case for negligence against the grocery store? No, she cannot. But why not? It is certainly true that the grocery store could have prevented the accident if it had really wanted to. The store could have installed a sophisticated laser-tripwire alarm system to detect the presence of any foreign object on the floor. Or the grocery store could have hired a large number of employees to act as sentries, guarding every aisle to provide constant monitoring of all floors for hazards. Those things would have prevented the accident. But it is not reasonable to expect stores to do these sorts of things. The law only requires people to be reasonably careful, not triple-extra-super-duper careful.

Notice that in this case, absolutely every other element of the negligence case is there. There is a duty of care: That is easy, because stores owe their customers a duty of care. There is also actual causation: But for the banana peel being in the aisle, there would be no injury. Proximate causation is satisfied as well: There is a very direct connection between the presence of the banana peel and the broken wrist, and a slip-and-fall is a foreseeable consequence of an abandoned banana peel in a walkway. The existence-of-damages element is satisfied also: There is a broken wrist. What is missing is the breach element. It is the breach element – and it alone – that prevents the unlucky shopper from recovering from the grocery store.

Case Illustration: *Rogers v. Retrum*, 170 Ariz. 399 (1991). The following case is an example of a situation in which all the elements of a negligence cause of action are present except for breach of the duty of care. The court takes pains to explain why it all comes down to breach, and because of this, the case provides an excellent introduction to the breach element. One thing to note about the

terminology in the case: What the court calls “legal cause” is a lumping together of what this casebook treats as two separate elements: actual causation and proximate causation. Moreover, instead of using the term “actual causation,” the case uses the terms “but-for causation” and “causation-in-fact.”

1. Intentional Conduct as a Breach of Duty

Can intentional conduct count as a breach of the duty of due care?

The logical answer would seem to be yes. To act with the intent to harm or with the substantial certainty of causing harm is one way of failing to act with due care for persons around you. Nevertheless, several courts have held that intentional conduct cannot count as a breach of the duty of due care. These cases seem to focus on the everyday meaning of the word “negligence” as meaning “carelessness,” rather than looking at the tort of negligence as series of elements, which, if proved by the plaintiff, make out a prima facie case for liability.

An example of this approach is found in *American National Fire Insurance Co. v. Schuss*, 221 Conn. 768 (Conn. 1992), in which the Connecticut Supreme Court held that the perpetrator of intentional conduct could not be held liable in negligence. The complaint alleged that the defendant set fire to a synagogue, and a jury found the defendant liable in negligence. Yet the trial court set aside the verdict and the Connecticut Supreme Court affirmed, seeing the evidence that the defendant set the fire intentionally as a kind of defense to the negligence claim.

2. An Objective Standard

The reasonable person standard is an objective one. It requires evaluating the situation as if viewing it from above. By contrast, a subjective standard would go to what a person’s own thoughts were. If the reasonable person standard were a subjective standard, you could successfully defend a negligence lawsuit by convincing the jury that you genuinely thought you were being reasonable – that you were “trying your best.” Yet under the objective reasonable person standard, if your best isn’t as good as the reasonable person, then your best isn’t good enough.

3. Children

An exception to the reasonable person standard is made for children. The rule, as stated in *Hardsaw v. Courtney*, 665 N.E.2d 603, 606-07 (Ind. Ct. App. 1996), is: “The standard of care expected of a child is measured by that degree of care which would ordinarily be exercised by a child of like age, knowledge, judgment and experience under like conditions and circumstances.” Notice that the standard is not only lowered for children and calibrated by age, but allowances are also made for differences in knowledge, judgment, and experience. So this standard is quite unlike the stalwart and unyielding objective standard for adults.

The standard for children leans away from a purely objective standard, so much so that it arguably becomes quite subjective. In fact, one could say that the reasonable person standard is not just adjusted for children, but that it is thrown out entirely. Note that in the statement of doctrine from the Indiana court, there is no use of the word “reasonable” at all. There is an important exception to

the child standard of care, and that is when the activity that the child is engaged in is an adult activity. This is often applied to when a child is operating a motor vehicle, such as a car, motorboat, airplane, or snowmobile.

But it has been applied in other contexts as well, including golf. In *Neumann v. Shlansky*, 58 Misc. 2d 128 (N.Y. County Ct. 1968), an 11-year-old golfer teeing off drove a ball into the plaintiff's knee. The court wrote: "As applied to the instant case, one of the critical elements in the opinion of the court is the risk involved when a dangerous missile is hit by a golfer. Just as a motor vehicle or other power-driven vehicle is dangerous, so is a golf ball hit with a club. Driving a car, an airplane or powerboat has been referred to as adult activity even though actively engaged in by infants. Likewise, golf can easily be determined to be an adult activity engaged in by infants. Both involve dangerous instruments. No matter what the age of a driver of a car or a driver of a golf ball, if he fails to exercise due care serious injury may result." In many of these cases, the courts have rejected the argument that because children frequently engage in the activity, it should not be considered an adult activity. These courts tend to look at the level of danger associated with the activity, rather than its adulthood. Other courts take a different view, however, and will allow a lowering of the standard of care for children even when the activity is inherently dangerous, so long as it is often engaged in by children. In *Purtle v. Shelton*, 474 SW 2d 123 (Ark. 1971), the adult standard was held not to be applicable to a 17-year-old engaged in deer hunting. The defendant, in a deer stand, shot at what he thought was a deer. In fact, the defendant shot in the vicinity of his 16-year-old friend. The bullet broke into shrapnel, hitting the friend in both eyes. The court said:

"We are unable to find any authority holding that a minor should be held to an adult standard of care merely because he engages in a dangerous activity. There is always the parallel requirement that the activity be one that is normally engaged in only by adults.~ We have no doubt that deer hunting is a dangerous sport. We cannot say, however, either on the basis of the record before us or on the basis of common knowledge, that deer hunting is an activity normally engaged in by adults only. To the contrary, all the indications are the other way.~ We know, from common knowledge, that youngsters only six or eight years old frequently use .22 caliber rifles and other lethal firearms to hunt rabbits, birds, and other small game. We cannot conscientiously declare, without proof and on the basis of mere judicial notice, that only adults normally go deer hunting."

C. Causation

1. Actual Causation

"If we could fly out of that window hand in hand, hover over this great city, gently remove the roofs, and peep in at the queer things which are going on, the strange coincidences, the plannings, the cross-purposes, the wonderful chains of events, working through generations, and leading to the most outré results, it would make all fiction with its conventionalities and foreseen conclusions most stale and unprofitable." – Sherlock Holmes, "A Case of Identity," by Arthur Conan Doyle, 1892.

The section does double duty. Actual causation is not just an element of negligence, it is an issue in torts generally, including with strict liability, battery, trespass to land, etc. So you will learn the

concepts here, in the context of negligence, but keep in mind that they are generally applicable throughout the landscape of tort law. (Your introductory course in criminal law may cover actual causation as well. The essential concept there is the same, although the ramifications can be quite distinct.)

You may find that actual causation is the simplest element to understand. And, in many cases, it is also the easiest to prove at trial. In other cases, however, showing actual causation can be the most perplexing challenge the plaintiff will face. The requirement of actual causation is simply that there must be a cause-and-effect relationship between the defendant's conduct and the plaintiff's injury.

The concept of breaching a duty of care is an almost endless jurisprudential puzzle. It requires real wrangling. Actual causation, by contrast, is almost self-explanatory. As we will see in this chapter, however, there are a few complications – some of them quite surprising – that bear some scrutiny. Nonetheless, the relative simplicity of the concept means that there is considerably less to say about it.

When actual causation presents a live issue in a case, it is usually a factual matter rather than a legal one. That is, the issue is usually something to be resolved with evidence, witnesses, and logical thinking. The But-For Test Here is 95% of the law of actual causation: If the injury would not have occurred but for the defendant's breach of the duty of care, then actual causation is satisfied; if not, then not. That is called the "but for" test. You simply ask, "But for the defendant's breach of the duty of care, would the injury have occurred?" Now, you can ask same the question without using the words "but for." (E.g., "Absent the defendant's accused conduct, would the injury have occurred anyway?") But the words used by all the courts and all the learned treatises are "but for."

Law, in general, is filled with long phrases, big words, counterintuitive terms, and numerical code provisions – not to mention a heavy helping of Latin. So it may come as something of a surprise that the lynchpin of actual causation comes down to a test named with two words of three letters each that mean exactly what they sound like they mean: "but for." Moreover, the term is universal. Everyone calls it the "but for" test, even a law-school-dean-turned-justice writing for a unanimous U.S. Supreme Court. See *Fox v. Vice*, 563 U.S. 826, 131 S.Ct. 2205, 2215 (2011) (Justice Kagan, discussing the "but-for test" in the context of civil rights claims under 42 U.S.C. § 1988).

There are two distinct concepts within the umbrella of "causation" in torts. One is actual causation, the subject of this chapter. The other is proximate causation, the subject of the next. Since actual causation and proximate causation are conceptually distinct, this book treats them as separate elements. But many writers will lump them together as "causation." Thus, distinguishing the concepts from one another is the first step in understanding either one. Actual causation is a matter of strict, logical, cause-and-effect relationships. Proximate causation – where proximate means "close" – is a judgment call about how direct or attenuated the cause-and-effect relationship is, and whether it is close enough for liability.

This example will help you see the difference. Suppose you drive a car carelessly and run over your neighbor's mailbox. Your neighbor, sitting on her front porch, has seen the whole thing. Bursting out of the car, you put your hands on your hips and say, with indignity, "My mother and father caused this to happen." Your neighbor screws up her eyebrows. "What on earth are you talking about?" she says. You answer, "My mother and father got together and they, you know, caused me to exist. So they caused this to happen to your mailbox. I'm so sorry." In such a case it would be absolutely undeniably true that, as a strict matter of the logic of cause-and-effect, you mother and father caused the accident. But, of course, offering this as some kind of explanation for what happened to the mailbox is silly. The tension here is the difference between actual causation and proximate causation. It is true that your mother and father caused the accident in the sense of actual causation. But your mother and father did not cause the accident in the sense of proximate causation.

In everyday, non-legal English, when we use the word "caused," we are talking about some combination of actual causation and proximate causation. Most of the time, there is no need to separate out the concepts. But when it comes to legal analysis in torts, we need to specify exactly what we are talking about because, as you will see, the two concepts implicate entirely different sets of concerns.

2. Proximate Causation

This section – like the one on actual causation – will do double duty. Proximate causation is not only an element of negligence, but also a requirement for torts generally, including, for example, the intentional torts of battery, trespass to land, and trespass to chattels, as well as strict liability. For now, we will be talking about proximate causation in the context of negligence. But when you move on to considering other tort causes of action, the same doctrine of proximate causation will apply. (And, once again, you may find that your criminal law course covers proximate causation as well. The concept, at root, is the same for torts and crimes, although the implications diverge.) To meet the requirement of proximate causation, the plaintiff must show that the causal chain from the defendant's breach of duty to the injury suffered was not too attenuated or indirect. The point of proximate causation is that it places some outer bound on the scope of a defendant's liability for any given tortious act. Generally, the touchstone is some version of foreseeability. If the plaintiff's injury is foreseeable at the time of the time of the defendant's duty-breaching conduct, then proximate causation is usually satisfied – although the details of the doctrine get considerably more complex.

"For the want of a nail the shoe was lost,
For the want of a shoe the horse was lost,
For the want of a horse the rider was lost,
For the want of a rider the battle was lost,
For the want of a battle the kingdom was lost,
And all for the want of a horseshoe-nail."

- Benjamin Franklin, 1758

Actual causation is a matter of strict, logical, cause-and-effect relationships. The element of proximate causation, on the other hand, is a judgment call about how long or attenuated the cause-and-effect relationship is. "Proximate" means "close." The label gets at the question of how close the breach of duty and injury are. The breach and injury need not be close in space or close in time –

they could take place many miles and many days apart. But the breach and injury must be somehow close along the chain of causation that links one to the other. The element of proximate causation is an outgrowth of the commonsense meaning of the word “cause.” As we saw in the last section, there is a bewilderingly large number of events that are actual causes of an injury.

Suppose a pedestrian is injured when struck by a car. The car was being driven by a minister who was headed up a lonely stretch of mountain road to officiate at a small wedding ceremony. The bride and groom met a couple years ago when the groom was taken to the hospital after being injured by a negligently maintained lighting fixture, which dropped on him from the ceiling of a department store. The bride-to-be was the groom-to-be’s treating physician, and after they met, they fell in love. Now, can we say the department store’s negligence caused the car accident? A good response might be: “Yes, but only if you are being silly about it.” In terms of strict cause-and-effect, there is no question that the department store’s negligence caused the accident. So the element of actual causation is met. But it still seems ridiculous to say that the department store “caused” the accident. That’s where proximate causation comes in. In the language of tort, we would say that the department store’s negligence was not a proximate cause of the automobile accident.

One way, then, of defining proximate causation is that it is a certain lack of silliness in saying that one thing is the “cause” of another. Proximate causation is one aspect of what we mean in everyday language when we talk about one thing being the cause of another thing. Actual causation is the other. The point of separating them out for legal analysis is so that we can speak of the concepts more carefully and thoroughly, which should ultimately allow us to get at a more fair result.

Viewing all of the elements of a prima facie case for negligence together, you will find considerable practical and conceptual overlap between the duty-of-care element and the proximate causation element. Both proximate causation and duty of care function to circumscribe in a somewhat arbitrary way the range of situations where a plaintiff can recover from a defendant. In accomplishing this, both elements largely revolve around the idea of foreseeability. So why have both elements in the cause of action of negligence? What distinguishes the two? These are excellent questions. Conceivably the elements of duty of care and proximate causation could be combined, or one absorbed into the other. But for whatever historical reasons there might be, negligence law developed the way it did, and we have the two elements.

D. Damages

"No Harm, no Foul."

Chick Hearn, sportscaster for the L.A. Lakers, circa 1960–2000

The existence of an injury is an element of the prima facie case for negligence. Even if a defendant had a duty and breached a duty, there is no negligence claim unless there is some compensable

harm. Another way of stating the same idea is that “damages” is an essential element of the prima facie case for negligence.

Not all causes of action require an injury or damages. For instance, the intentional tort of trespass to land has no such requirement. If someone trespasses on your land, you can sue them whether or not they caused you any sort of loss. So, if someone trespasses by walking on your land, and then walks off, having not disturbed even a stalk of grass, you can win a lawsuit against them. In such a lawsuit, you would be entitled to “nominal damages” – meaning damages in name only – commonly a single dollar. So why would anyone pursue such a lawsuit? Except under rare circumstances, there’s no point. Yet, if they want to, they can.

Negligence is not like that. There must be damages in order to form a prima facie case. And the damages must be of a certain kind. Generally speaking, they must be compensatory damages occasioned by physical damage “to person or property,” meaning to a person’s body or a person’s tangible property. In the context of damages, “compensatory” means damages that compensate someone for an actual loss. It is not possible, for instance, to sue someone for negligence just out of a desire to punish them for being careless. Punitive damages will not suffice to make out a prima facie case for negligence. (Assuming you have compensatory damages, and thus can make out a prima facie case for negligence, you can then argue for punitive damages as a way of increasing the amount of the award – but that’s a subject for later in this manual.)

The requirement that the damages be for physical injury to the person or property excludes many possible claims. Notably, mental anguish, by itself, is not the kind of injury that is sufficient to establish a negligence case. Also, purely economic damages will not suffice. So, if someone’s carelessness causes you to not get a job, then, without more, there is no negligence case. Now, if you lose your job because you are in the hospital, and if you are in the hospital thanks to a car accident for which you can establish all the elements of negligence, then you can recover for both the lost job as well as the hospital bills. But without the physical injury that sends you to the hospital, you have no case in negligence.

The doctrine regarding the existence of a compensable injury in the negligence case is sometimes put under the heading of whether there is a duty of care – that is, the first prima facie element of negligence we dealt with in this book. Whether courts look at it as a question of duty or as a separate element of the negligence case, the point is that without proving harm – and harm of the right kind – the plaintiff has not put forth a complete claim.

1. Pure Economic Loss

In general, pure economic loss – that is, unaccompanied by any physical damage to the plaintiff’s person or property – will not suffice as an injury to create a prima facie case for negligence.

In *People Express Airlines, Inc. v. Consolidated Rail Corp.*, 495 A.2d 107 (N.J. 1985), the defendant railroad negligently caused a fire that forced the evacuation of an airport terminal, resulting in a slew of cancelled flights. The court allowed the airline to recover from the railroad for the financial loss suffered on account of the cancelled flights because the airline, as a plaintiff, was “particularly

foreseeable.” The same court rejected claims from everyone else – including travelers who lost business deals. Even though such losses were foreseeable, they were not, in the view of the court, particularly foreseeable.

2. Mental Anguish and Emotional Distress

The general rule is that emotional or mental distress will not suffice as an injury for purposes of pleading a *prima facie* case for negligence. There are myriad exceptions, however. Much of the development of doctrine of allowing claims for pure emotional distress involve parents seeking compensation for emotional distress related to the death or grievous bodily injury of a child. Pregnancy and childbirth are recurrent contexts as well. Much of the impetus for the development of doctrine in this area likely has to do with the fact that the death of a child – for reasons to be explored later – will ordinarily give rise to little or nothing in damages under the common law of torts.

At the outset, it is important to keep in mind that mental suffering is generally recoverable if it is occasioned by a physical injury. The loss of a limb, for instance, may cause compensable emotional harm. That much is clear. Our question here is to what extent can a mental/emotional harm itself provide the injury that is required for a *prima facie* case for negligence. Historically, the courts loosened the requirement of a physical injury in cases of severe emotional distress to allow lawsuits where, despite the lack of a physical injury, there was at least a physical impact associated with the event that gave rise to the emotional distress.

Requiring an impact, however, led to results such as the one in *Mitchell v. Rochester Railway Co.*, 45 N.E 354 (N.Y. 1896), where a woman was denied recovery – for lack of an impact – where a team of runaway horses almost trampled her, though never touched her, and the stress of the event resulted in her having a miscarriage. Later courts became willing to allow a claim for emotional distress where accompanied by some physical manifestation of the stress. And some courts broadened the impact exception to embrace situations where there was some risk of impact to the plaintiff, or where the plaintiff was within the “zone of danger” of an incident. Either of these rules, of course, would have aided the plaintiff in *Mitchell*.

Today, many cases support what can be thought of as an independent tort of negligently inflicted emotional distress – sometimes abbreviated “NIED.” Particularly influential in this regard was the case of *Dillon v. Legg*, 68 Cal. 2d 728 (Cal. 1968), which allowed recovery to a person not within the zone of danger.

In that case, Margery M. Dillon witnessed her daughter Erin being fatally struck by an automobile negligently driven by the defendant. Erin, who was five, had started out ahead of her mother, legally crossing a road, when hit. The *Dillon* court set out three factors to be considered:

“(1) Whether plaintiff was located near the scene of the accident as contrasted with one who was a distance away from it.

(2) Whether the shock resulted from a direct emotional impact upon plaintiff from the sensory and contemporaneous observance of the accident, as contrasted with learning of the accident from others after its occurrence.

(3) Whether plaintiff and the victim were closely related, as contrasted with an absence of any relationship or the presence of only a distant relationship.”

Under Dillon, these were only factors to be considered – that is, they were guidelines for assessing whether the plaintiff’s emotional trauma would be considered legally “foreseeable.” Many states followed California’s lead, recognizing some form of NIED in the mold of Dillon, often with various tweaks.

E. Defenses to Negligence

“Offense sells tickets, but defense wins championships.”

– attributed to Paul William “Bear” Bryant

There are three ways for a defendant to win a negligence case. First, and easiest, the defendant can just stand by as the plaintiff fails to put on evidence to prove each of the prima facie elements. If that happens at trial, the defendant can successfully move for a directed verdict – thereby winning the case without putting on a single witness or, theoretically, even without asking a single question of any of the plaintiff’s witnesses.

Assuming the plaintiff puts on a prima facie case, the second way for a defendant to win is to make out a rebuttal defense. A rebuttal defense is established by offering evidence to rebut the plaintiff’s evidence for one or more of the prima facie elements established by the plaintiff. But the defendant need not rebut a prima facie case: The third and final way for a defendant to win is to prove an affirmative defense.

Even if a plaintiff makes out a prima facie case, and even if the defendant has no rebuttal evidence whatsoever, the defendant can still obtain victory by proving an affirmative defense. Sometimes an affirmative defense will effect a complete victory for the defendant. Other times, an affirmative defense will effect a partial victory, shielding the defendant from some portion of the damages.

When it comes to affirmative defenses, the burden of proof is on the defendant. That is why it is called an “affirmative” defense – proving it up is the affirmative obligation of the defendant. In comparison, the first two ways for defendants to win – pointing out the failure of proof on the prima facie case or rebutting an element – can be thought of as “negative” defenses. There, the defense is premised on what the plaintiff lacks. With an affirmative defense, the defendant has the burden of putting all the needed evidence in front of the fact-finder.

The standard of proof for an affirmative defense is the same as for the plaintiff’s prima facie case – preponderance of the evidence. And, like a cause of action, an affirmative defense may be broken down into elements. Where an affirmative defense is structured as a series of elements, the defendant will have to prove each one of the elements by a preponderance of the evidence. Keep in

mind that an affirmative defense trumps the plaintiff's prima facie case. Even if a plaintiff went far beyond its burden of proving every element by a mere preponderance of the evidence – suppose, for instance that a plaintiff proved every element to a 100% certainty – it only takes an affirmative defense with each element proved by a mere preponderance of the evidence to block the plaintiff's recovery.

There are three main affirmative defenses that are particular for negligence claims: **contributory negligence, comparative negligence, and assumption of the risk**. They are the subject of this chapter.

The first two affirmative defenses – contributory negligence and comparative negligence – work by pointing the finger back at the plaintiff and blaming the plaintiff's injury on the plaintiff's own negligence. Contributory negligence and comparative negligence are alternatives to one another. Most jurisdictions have the defense of comparative negligence. The few that do not have the contributory negligence defense.

The defense of assumption of the risk is just what it sounds like: The plaintiff agreed to shoulder the risk that something would go wrong, so when it does, the plaintiff cannot come to the defendant for compensation.

1. The Plaintiff's Own Negligence

If the plaintiff's own negligence worked to bring about the harm the plaintiff complains about, then the defendant can use the plaintiff's negligence as a defense. Depending on the jurisdiction, the defense will either be of the contributory-negligence type or the comparative negligence type. Within either type, there are a myriad of possible differences between jurisdictions.

All of tort law is subject to differences from one jurisdiction to another. But there is probably no more important and fundamental set of differences in common-law doctrine than those having to do with the affirmative defense premised on the plaintiff's negligence. If you were a personal-injury attorney or an insurance-defense attorney moving to a new state, the first thing you would want to learn is how the law regards the plaintiff's negligence as a defense. The first and most important distinction is whether the jurisdiction recognizes the comparative negligence defense or the contributory negligence defense. Contributory negligence is the older doctrine, and it is more defendant friendly. Comparative negligence – also called “comparative fault” – is the newer doctrine, and it is more plaintiff friendly.

Under contributory negligence, if the plaintiff was a little bit negligent, then the plaintiff loses. Under comparative negligence, the plaintiff's negligence is not necessarily a bar to recovery, but it will at least serve to reduce the total amount of the award.

a. Contributory Negligence

The doctrine of contributory negligence holds that if the defendant can prove that the plaintiff's own negligence contributed to the injury that the plaintiff complains of, then the defendant is not liable. To be more exact, proving a case for contributory negligence involves proving that the plaintiff's conduct fell below the standard of care a person is expected to adhere to for one's own good, and that such conduct was an actual and proximate cause of the injury that the plaintiff is suing on.

Contributory Negligence means (1) breach of the duty of care, (2) actual causation, and (3) proximate causation.

To break the defense of contributory negligence into elements, we can start with the elements of negligence. To review, those are: owing a duty, breaching the duty, actual causation, proximate causation, and the existence of an injury. For purposes of contributory negligence, we can throw a couple of those elements out. It generally goes without saying that a person owes a duty to one's self, so there is no need to have the existence of duty as an element. Similarly, there is no point in discussing the existence of an injury, since the occasion for asserting the defense will never come up unless there is an injury.

In practice, issues of contributory negligence generally revolve around the breach element. Contributory negligence was once available as a defense everywhere. Now it exists only in five American jurisdictions – Maryland, the District of Columbia, Virginia, North Carolina, and Alabama. Curiously, you'll note, all of those jurisdictions are contiguous except Alabama. And interestingly enough, the state of Tennessee – which connects Alabama to Virginia and North Carolina – is the most recent convert from contributory negligence to comparative fault.

Tennessee broke the contiguous swath when it switched in 1992. The reason for the decline in contributory negligence is that it is perceived as being too harsh on plaintiffs. With the defense of contributory negligence, a plaintiff who is found to have been even slightly negligent will be completely barred from any recovery, even against a defendant who was colossally negligent. Imagine that it's late at night on a stretch of two-lane highway. The driver of a car momentarily takes his eyes off the road while adjusting his car's air conditioning vents, and at that moment is hit head on by an overloaded truck with no lights whose driver was simultaneously under the heavy influence of alcohol, cocaine, and heroin, and – at the moment of the collision – was attempting to learn juggling by watching an instructional video on a laptop set on the dashboard and practicing the moves with a set of steak knives. The collision causes the driver of the car to be grievously injured and permanently disabled, while the truck driver walks away without a scratch. What is the result in a contributory negligence jurisdiction? No recovery for the plaintiff.

b. Last Clear Chance Doctrine

Contributory negligence can be harsh. But the bare doctrine of contributory negligence doctrine is not the whole story. Perhaps because of its harshness, various subversions have evolved to ameliorate contributory negligence in favor of plaintiffs in certain circumstances.

The most important of these is the doctrine of last clear chance. The idea of last clear chance is that if, despite the plaintiff's negligence, the defendant has a last clear chance to avoid the injury, then the defendant must seize that chance to prevent the harm. If the defendant doesn't, the defendant will be liable, the plaintiff's negligence notwithstanding.

Last clear chance applies when there is a particular temporal sequence to the plaintiff's and defendant's negligence: First, the plaintiff does something negligent, creating some perilous situation. Next, the defendant has a chance to avoid injury to the plaintiff by being careful. Then, the defendant omits to take the precaution, and injury results. This chronological order is essential – without it, last clear chance doctrine will not apply.

A good example of last clear chance is the case credited with introducing it: *Davies v. Mann*, 152 Eng. Rep. 588 (Court of Exchequer 1842). In *Davies*, a donkey was left in a highway fettered by its fore feet. This means of tying up the animal – called “an illegal act” in the opinion – prevented the animal from being able to get out of the way of traffic. The defendant, driving a horse-drawn wagon along the highway at a high rate of speed, ran over and killed the donkey. The court held: “[A]lthough the ass may have been wrongfully there, still the defendant was bound to go along the road at such a pace as would be likely to prevent mischief. Were this not so, a man might justify the driving over goods left on a public highway, or even over a man lying asleep there, or the purposely running against a carriage going on the wrong side of the road.” Keep in mind that last clear chance doctrine is relevant only in a jurisdiction following contributory negligence. In a comparative fault jurisdiction, the more blameworthy kind of negligence involved when a tortfeasor disregards an opportunity to avoid harm is swept up into the general comparative fault rubric of apportioning blame.

c. Comparative Negligence

At the time of this writing, 46 states have overturned the common law doctrine of contributory negligence in favor of some form of comparative negligence. About a dozen have done so as the result of a court decision, with the remainder having introduced comparative negligence by way of a statutory reform.

Comparative negligence – also commonly called “comparative fault” because it has applications in tort law beyond negligence claims – is a partial defense. It allows a defendant to escape some portion of the damages under certain circumstances on account of the plaintiff's negligence. Generally the jury is required to determine the relative fault between the parties in the form of percentages.

The reduction in damages is then done by multiplying the total damages by the relevant percentage. So if a jury finds that the plaintiff is 1% at fault, that the defendant is 99% at fault, and that the plaintiff suffered \$100,000 in damages, then the plaintiff's recovery will be reduced by \$1,000, meaning that the defendant will be liable for \$99,000. That is a simple example, though states have adopted various flavors of comparative negligence that add more complexity to this topic.

2. Premises Liability

When it comes to the liability for conditions of land and buildings, there are special rules that dictate the standard of care. These special rules only apply when the injury arises from a condition of real property, but either the owner or occupier of the realty can have a duty and be liable to an injured visitor.

The key to how the special rules work is that they require a different standard of care depending on the classification of the plaintiff – i.e., the person who enters the land. The rules differ from jurisdiction to jurisdiction, so any restatement of them will be highly imperfect. But what follows is a fairly standard conception of the traditional rules, ordered from the lowest duty to the highest.

a. Undiscovered/Unanticipated Trespassers

A person is a trespasser if she or he intentionally enters upon someone else's land without permission (express or implied) or some other privilege to do so. And if the land owner/occupier has no reason to know of or anticipate the trespassers' presence on the land, then the trespasser is an "undiscovered/unanticipated" trespasser. Such a person is owed no duty. That is to say, there is no way the undiscovered/unanticipated trespasser can recover against a land owner/occupier in a negligence action for an injury sustained because of a condition of the real property.

b. Discovered/Anticipated Trespassers

A discovered/anticipated trespasser is a trespasser – someone intentionally entering upon the land without privilege – who the owner/occupier either knows or expects to be on the land. If a owner/occupier knows that people habitually cut across the property as a shortcut between two public places, then such people would be anticipated trespassers. Even if the owner/occupier has not witnessed trespassers in the past, if there is evidence on the property that a reasonable person would understand as indicating trespassers – such as a beaten path – then the owner/occupier will be considered to have constructive notice of the trespassers.

Discovered/anticipated trespassers are owed a duty. In courts following the traditional approach, there is a duty to warn of or make safe any concealed artificial conditions which are capable of causing death or serious bodily injury. This is lower than the reasonable-care standard in three key ways: (1) only concealed or hidden dangers – "traps" the courts sometimes say – trigger the duty; (2) the duty only applies to artificial conditions, not natural conditions; (3) the dangers must be very serious ones, such as those risking life or limb. A good example is an abandoned mine shaft: it's hidden, it's not a natural feature, and it's potentially lethal. To obviate such liability the owner/occupier can either remedy the condition or create an effective warning – such as with posted signs. Note that some courts have scrapped the traditional approach in favor of applying the ordinary reasonable-care standard for discovered/anticipated trespassers.

c. Discovered/Anticipated Child Trespassers

An extra duty is placed on an owner/occupier in certain circumstances when the known (or knowable) trespassers are children. This rule is often called attractive nuisance doctrine, although as we will see that name is misleading. Where a land owner/occupier knows or should be aware of

child trespassers, that owner/occupier has a duty to remediate a dangerous artificial condition on the land capable of causing death or serious bodily injury, so long as the condition can be remedied without imposing an unreasonable burden on the owner/occupier.

The most important difference with regard to anticipated child trespassers as opposed to their adult counterparts is that the danger need not be concealed to trigger the duty.

Another important difference is that prominent warning signs do not offer an easy way out of liability. These differences reflect that fact that children lack good judgment and are often drawn to obviously dangerous things rather than being revulsed by them. The special treatment of children got its start in cases where children trespassed onto railroad land, attracted to the idea of playing on a rail turntable.

d. Licensees

The category of licensee is the default category of non-trespassers. Someone who is not trespassing is a licensee unless for some reason they qualify as an invitee (discussed below). In general, people on private property with the consent of the owner/occupier are licensees. Licensees include visitors to private homes, such as friends and family. Ironically (and confusingly), people who come into your home by way of a formal party invitation are not invitees; they are licensees.

With regard to conditions on real property, an owner/occupier owes to licensees a duty to warn of or try reasonably to make safe concealed hazards that are known to the owner/occupier. This is different from the duty to discovered/anticipated trespassers in that to trigger a duty, the danger need not be artificial, nor does it need to constitute a threat of serious bodily injury or death.

e. Invitees

Invitees are people who are allowed to come on land to conduct business related to the owner/occupier's business, or who are members of the public on land that is held open to the general public. Customers at the mall, visitors in a hospital, fans at a concert, 226 and sunbathers in a park are all invitees. Some jurisdictions also consider public employees such as police officers, firefighters, and mail carriers to be invitees, even when in private homes, so long as they are privileged to be there. Invitees are owed the highest duty by land owners/occupiers.

When it comes to conditions of real property, invitees are owed a duty to adequately warn of or render safe concealed hazards plus to make a diligent effort to inspect for unknown dangers.

The key difference between licensees and invitees is that with invitees, there is a requirement to affirmatively go out and look for conditions that may be a hazard for the unwary. This makes sense if you consider that invitees are generally persons from whom the owner/occupier stands to make money. In cases where there is no money to be made, such as with public spaces like parks, there is at least a subtle cue that the space is one where visitors can feel entitled to be there, as opposed to a private locale where they should feel as if they are guests who are obliged to be a little more circumspect.

Additional Sources and Case Law

Contributory negligence is the failure to observe ordinary care for one's own safety. *Menish v. Polinger Co.*, 277 Md. 553, 567, 356 A.2d 233 (1976). The standard of care imposed to protect oneself is that of a reasonable person under like circumstances, judged in the light of all the relevant knowledge which the person actually had. *Craig v. Greenbelt Consumer Services*, 244 Md. 95, 97, 222 A.2d 836 (1966). What a reasonable person would do in any particular circumstance is usually controlled by the instinctive urge to protect oneself from harm. *Greer Lines Co. v. Roberts*, 216 Md. 69, 79, 139 A.2d 235 (1958). A reasonable person, however, is not a very cautious person and even if a person's actions turn out to be an error of judgment, there is no contributory negligence if a reasonable person would have made the same error. *Sanders v. Williams*, 209 Md. 149, 153, 120 A.2d 397 (1956). Maryland continues to recognize the defense of contributory negligence. *Coleman v. Soccer Ass'n of Columbia*, 432 Md. 679 (2013). Maryland generally affords no duty of the landowner to a trespasser, though a landowner may have a statutory duty in certain circumstances, the violation of which may constitute evidence of negligence. *Blackburn L.P. v. Paul*, 438 Md. 100 (2014).

IV. Strict Liability



Figure 5 "Kaboom - RIAT 2014" by Airwolfhound is licensed under CC BY-SA 2.0

Learning Objectives

After completing the reading in this section on Strict Liability, the student will be able to:

1. Identify the circumstances where strict liability applies.
2. Compare and contrast strict liability with product liability and negligence.
3. Apply the strict liability rules for animals, ultrahazardous activities, and other situations of strict liability to facts

patterns.

4. Apply the defenses to strict liability rules to fact patterns.

Absolute Liability

“‘Danger! What danger do you foresee?’ Holmes shook his head gravely. ‘It would cease to be danger if we could define it,’ said he.” - from “The Copper Beeches,” by Arthur Conan Doyle, 1892

A. Introduction

The dominant form of legal action for compensation following an injury is the action for negligence, which we explored earlier in section three. The action for negligence involves the injured plaintiff showing that the defendant was somehow blameworthy in causing the plaintiff's injury. In particular, laying blame is harnessed to a concept of carelessness. In the abstract wisdom of tort law, the thinking goes like this:

Strict Liability means (1) the defendant owed the plaintiff an absolute duty of safety in regard to some condition or activity, and that condition or activity was (2) an actual cause and (3) a proximate cause of (4) an injury to the plaintiff's person or physical property.

Because the defendant was not appropriately careful, it is sensible to blame the defendant for injuries caused by that lack of care, thereby holding the defendant responsible for the injury. To put it another way, with negligence, the law is saying something like, "You are responsible for the damages caused by this incident because you did something wrong. And what you did wrong was not being careful enough."

Strict liability presents a stark contrast – it is missing the idea of blameworthiness that is at negligence's core. Where strict liability applies, the law will hold a defendant responsible even though the defendant did nothing wrong – that is, regardless of whether the defendant was being careful or not. At first blush, it might seem extremely unfair that the law would make people responsible for accidents even when they did nothing wrong. And perhaps most of the time it would be.

But strict liability only is available under very particular circumstances. You might find, as many others do, that in these limited circumstances, liability without blameworthiness seems instinctively fair.

1. The Absolute Duty of Safety

At the outset, a terminology note is in order. When it comes to talking about the "absolute duty of safety," some commentators take issue with the use of the word "absolute." They note that the duty is not technically "absolute." And they have a point. When it comes to law, almost nothing is truly absolute. Indeed, there are various limitations on strict liability, including proximate causation and comparative fault. Yet if you think of "absolute duty" as a term of art, there is no danger of confusion. The phrase "absolute duty" signifies that there is no need to show that the defendant did something wrong.

If you've become familiar with the cause of action for negligence, it might seem strange that the law would ever impose liability without fault. Indeed, scholars and judges have puzzled over whether strict liability is justified – in particular, many have questioned whether it is economically sound.

For the moment, however, it is helpful to realize that there is, at least, an intuitive sense in which we all recognize that some situations are appropriate for responsibility without fault. We have all heard

someone say something like, “Okay, you can do it, but if something goes wrong, it’s your butt on the line.” Strict liability is when tort law says this to society at large.

So when does the law give this eyebrow-raised admonition? Here are the five general categories where the absolute duty of safety is imposed:

- wild animals
- trespassing livestock
- domestic animals with known vicious propensities
- ultrahazardous activities
- defective products

These categories do the lion’s share of work in bending strict liability doctrine to conform to our intuitions of fairness. You can see immediately that this list is quite circumscribed, yet the categories carved out by strict liability – particularly the last two – have considerable economic significance.

Are They Wild or Domesticated?

B. Animals

Of the categories for the imposition of an absolute duty of safety, three of the five have to do with animals. The first concerns wild animals – “*ferae naturae*” in Latin. If you keep a wild animal, then you are liable for whatever damage it causes. Memo to general counsels for zoos and circuses: If a lion escapes and hurts someone, you’re on the hook.

What counts as a wild animal? Wild animals are defined in contradistinction to domestic

animals: Wild animals are animals that are not domesticated. Domesticated animals – in Latin “*domitae naturae*” or “*mansuetae naturae*” – are those that have been bred to be helpful to humans. Some examples are dogs, cats, cows, pigs, and chickens. So, if it hasn’t been bred to be helpful to humans, it is wild.

It is important to keep in mind that whether an animal is wild has nothing to do with whether it seems dangerous. A lion is wild, of course, but so is a baby deer. If the baby deer you are keeping somehow causes someone injury, then you are on the hook for the damage – notwithstanding whatever cuteness it may radiate. Whether or not an animal is wild also has nothing to do with whether it is being kept as a pet. If you keep a non-domesticated animal as a pet,



Figure 6 “Vicious looking dog that could bite” by State Farm is licensed under CC BY 2.0

it's still wild. Stories occasionally pop up in the news about someone keeping a tiger as a pet. If you own a tiger, be aware that that it doesn't matter if the tiger sits still while you dress it in funny outfits and has never eaten anything other than kibble from a bag: it's still a wild animal. And strict liability applies if it injures anyone.

An animal can be tamed and still be wild. Taming and domestication are two different things. An animal can be tamed during its lifetime, but a single animal cannot be domesticated. Domestication is something that happens over generations of animal breeding, and it is only this process that brings animals out of the realm of strict liability. Of course, not all wild animals give rise to strict liability – only those that the defendant is keeping or possessing. A wild animal roaming across the defendant's property will not bring about strict liability. But doing something to keep the animal around – confining it, or maybe just feeding it and encouraging it to linger – will bring about an absolute responsibility for injuries it causes.

1. Trespassing Livestock

The second category imposing an absolute duty of safety is trespassing livestock. The first example to leap to mind might be something like an escaped bull that gores a neighbor. Certainly those facts would bring about the application of strict liability. But the rationale for the trespassing livestock doctrine is not so much that livestock are a threat to people, but rather that they are a threat to agriculture. That is, the archetypal injury in a strict liability action for trespassing livestock would be crops that have been eaten or trampled.

Suppose a farmer is growing corn. Next door, a rancher has 200 pigs. The pigs escape their pen and tear up the corn field, rendering the year's crop a total loss. The farmer can sue the rancher in strict liability, and the rancher is on the hook – no matter how careful the rancher was in attempting to confine the pigs. There is an important difference among jurisdictions in the application of strict liability in the case of trespassing livestock. The default is “fence in,” meaning that it's up to keepers of livestock to keep their animals penned up – or else be liable for whatever damage they cause. In some places, however, the onus is on farmers to “fence out” marauding livestock. Respectively, these are fence-in jurisdictions and fence-out jurisdictions.

The fence-in/fence-out rule could be set at the level of the state, the county, or even a subdivision of a county. It's frequently a matter of statutory law. Roughly speaking, farm country tends to follow the fence-in rule, while ranch country tends to opt for the fence-out rule. So, in general, if you want to grow crops in ranch country, you'll need to build a fence. If you want to raise livestock in farm country, you'll need to pen them in. A key point to remember is that “livestock” is a distinct categorization from “domesticated animals.” Cattle qualify both as livestock and as domesticated animals. But dogs and cats, while domesticated, are not livestock. The distinction is important, because it means that trespassing cats and dogs do not give rise to strict liability under the common law.

What animals count as livestock? Cattle, sheep, pigs, and horses definitely count as livestock. Cats and dogs do not. In general, livestock are animals raised by people as part of a farming or ranching

operation. But the exact definition of “livestock” is not entirely settled. Various cases, regulations, statutes, and other authorities define the term in different ways.

Many definitions require animals to be domesticated to qualify as livestock. But not all. Non-domesticated elk, for instance, might qualify as “non-traditional” livestock if they are raised for food. But at the end of the day, whether wild animals can be counted as livestock does not matter much for purposes of strict liability. If a wild animal escapes its enclosure and trespasses on someone else’s property, it creates strict liability for its owner merely by virtue of being a wild animal. It’s additional qualification as livestock for strict-liability purposes would be redundant.

2. Vicious Animals

The third category of animal-related strict liability concerns domestic animals with known, vicious propensities. Theoretically, this could apply to a number of creatures, but as a practical matter, we are really talking about dogs that bite people. This doctrine is the subject of an enormous amount of neighborhood lore. Some people – even some lawyers – call this the “one bite rule” and recite the doctrine as “every dog gets one free bite.” But that description is highly inaccurate. The real rule is more complicated.

Strict liability applies under the common law when the keeper of the animal has subjective knowledge of some propensity of the animal to cause harm. Thus, if a dog has previously bitten a person without provocation, the dog’s keeper has subjective knowledge such that the next person to be bitten will be able to recover under strict liability.

Where this departs from the “one free bite” idea is that, in reality, a dog does not need to bite someone in order to give that dog’s keeper knowledge of its abnormal propensity to cause harm. For instance, if the dog was tied up and mistreated, and then exhibited abnormal aggression toward people, that might well be enough for strict liability to apply – even if the dog had yet to bite someone. Some courts have held that a “beware of dog” sign constituted evidence that an owner had the requisite knowledge of a dog’s dangerous propensity.

Another problem with the free-bite paraphrasing is that it ignores the fact that a dog-bite victim can always sue in negligence. Suppose an untrained Rottweiler has a brand new owner. Strict liability for a known dangerous propensity cannot apply, because the owner has no knowledge about the dog – much less any knowledge of dangerous propensities. Thus, strict liability will not apply. But if the Rottweiler’s owner leaves a small child alone with the animal, and if the child is bitten, a jury would likely find the Rottweiler’s owner liable in negligence, since the reasonable person would not leave a small child alone with an untrained Rottweiler. It also is frequently possible for dog bite victims to sue using negligence-per-se doctrine.

For example, suppose an ordinance requires dogs to be leashed while in the city park. An injury caused by an unleashed dog in the park could then subject the dog’s keeper to automatic liability via *negligence per se*. The common law and ordinances are not the only important source of law on dog bites. In many states, statutory law specifically controls liability for dog bites. Frequently, such

statutes dictate that dog owners are liable for all injuries their dog causes, with a few exceptions, such as that the victim was trespassing or that the victim provoked the dog.

C. Ultrahazardous Activities

In addition to the specific categories that the law sets out for strict liability in connection with animals, there is the large, general category of strict liability for “ultrahazardous” or “abnormally dangerous” activities. This is another place where terminology might lead you to misunderstand the doctrine. Note that “ultrahazardous” and “abnormally dangerous” are not two different categories, but rather two different labels for one category. The courts employ the two terms about equally today.



Figure 7 "Satsop Nuclear Power Plant" by Dave Sizer is licensed under CC BY 2.0

The American Law Institute favored “ultrahazardous” in its First Restatement of Torts, but then switched to “abnormally dangerous” for its Second Restatement. Both terms, however, have potential problems. The danger posed by the term “abnormally dangerous” is that you might think the words mean what they say. That is, you might think that that for an activity to qualify as “abnormally dangerous,” it needs to present a danger that is not normal. That, however, is not correct. There are many abnormal dangers that do not qualify for strict liability, and many familiar risks from common activities that do.

“Abnormally dangerous” must be thought of as a term of art. The hazard posed by the term “ultrahazardous” is that you might think that it is the magnitude of the potential harm that causes something to qualify as an ultrahazard. But something can be “ultrahazardous” even if it threatens only one person. What is good about “ultrahazardous” as a label, however, is that it is clearly a made-up word, and thus it is easily identifiable as a term of art. In this manual, we’ll use both terms as synonyms.

What activities qualify as ultrahazardous or abnormally dangerous? What causes something to qualify as an ultrahazardous or abnormally dangerous activity for strict liability purposes? There is no simple, concise answer. With animals, the qualifications for strict liability are fairly specific. By contrast, the category of strict liability for ultrahazardous activities is a more recent development in the law, and its boundaries are considerably fuzzier. The core idea is less about the characteristics of the activity and more about a policy judgment that people who undertake certain activities must be responsible for any harm that results, regardless of how much care is taken. The policy judgment inherent in the task mirrors the policy judgment involved in deciding whether a defendant owes a duty of care for purposes of a negligence action. And as is the case with the existence of a duty in negligence, whether an activity qualifies for strict liability is generally a legal question – to be determined by a court, rather than a jury.

Here are some examples of activities have that been held to give rise to strict liability under the ultrahazardous classification:

- blasting
- fumigation
- crop dusting
- activities involving nuclear reactions or radioactivity
- pile driving
- oil drilling
- activities involving explosives or highly toxic chemicals (including manufacturing, transporting, storing, and using)

You can see that many of these activities are quite “normal” in the sense that they go on all the time. To the extent one could say that there is something abnormal about them, perhaps it is that relatively few people in society engage in them. There are many farmers for instance, but there are comparatively few providers of crop-dusting services. And while everybody uses gasoline and other products derived from petroleum, very few people in society go drilling for petroleum.

D. Defenses to Strict Liability

In general, the same defenses that apply to negligence also apply to strict liability, with one important exception: Contributory negligence, in those jurisdictions still using it, is generally not considered a viable defense in a strict liability action.

Other defenses apply as they would with negligence. Comparative negligence, in those jurisdictions following it, functions as a defense for strict liability as it does for negligence: The plaintiff’s negligence will serve to reduce the total recovery. The only sticky issue is the name “comparative negligence.” Indeed, comparative negligence is often called “comparative fault” – at least in part so that it does not seem out of place in the strict liability context.

Assumption of the risk also may be used as a defense in strict liability situations as well, and where it applies, it will bar recovery altogether. There is also an important limitation on strict liability that grows out of the application of proximate causation. For strict liability to apply, there must be a tight connection between the means of injury and the reason for invoking strict liability.

An example will illustrate this: Suppose the defendant retail store is cleaning floors with a nuclear vacuum cleaner. The plaintiff trips over the vacuum when a careless employee pushes it into the plaintiff’s path, and as a result the plaintiff suffers a broken arm. The plaintiff can sue in negligence, but a cause of action for strict liability will not apply. Why not? After all, nuclear technologies are generally categorized as ultrahazardous. The plaintiff’s problem lies in proximate causation. Proximate causation is lacking for strict liability because the ultrahazardous nature of the activity is

not germane to the injury. Stated in other terms: The strict liability case here fails the harm-within-the-risk test: Was the kind of harm suffered by the plaintiff the kind that caused the absolute duty of safety to arise? No, so strict liability does not apply.

Note that the plaintiff could still sue in negligence. Proximate causation will not be a problem in the negligence case, since there is a tight connection between the careless pushing of the vacuum cleaner and the plaintiff's broken bone. Another limitation on strict liability comes out of a line of cases holding that strict liability for abnormally dangerous activities will not apply where the injury would not have occurred but for an abnormally sensitive plaintiff.

In the famous case of *Foster v. Preston Mill Co.*, 44 Wash.2d 440 (Wash. 1954), the defendant's blasting operations disturbed operations on a nearby mink ranch. The ranch's manager testified that after a blast rattled cages, mother minks would run back and forth and kill their kittens. Between 35 and 40 kittens 60 were killed this way, according to testimony. The court refused to apply strict liability, writing: The relatively moderate vibration and noise which appellant's blasting produced at a distance of two and a quarter miles was no more than a usual incident of the ordinary life of the community. The trial court specifically found that the blasting did not unreasonably interfere with the enjoyment of their property by nearby landowners, except in the case of respondent's mink ranch. It is the exceedingly nervous disposition of mink, rather than the normal risks inherent in blasting operations, which therefore must, as a matter of sound policy, bear the responsibility for the loss here sustained. We subscribe to the view~ that the policy of the law does not impose the rule of strict liability to protect against harms incident to the plaintiff's extraordinary and unusual use of land.

Additional Sources and Case Law

Strict liability doctrine recognized in Maryland since 1894: *Balt. Breweries Co. v. Ramstead*, 78 Md. 501, 28 A. 273 (1894). Under the modern version of the doctrine, even if the actor exercises the utmost care to prevent harm, he will be liable without a finding of fault if he engaged in an abnormally dangerous activity. Maryland courts and courts throughout the nation have asserted that the location of the activity is the most important factor of the six-factor test in these types of cases. *Kelley v. R.G. Indus., Inc.*, 304 Md. 124, 133-34, 497 A.2d 1143, 1147 (1985) (citing four cases from other jurisdictions in support).

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